

# **Polemical Theology**

## **Controversy XXVIII: On the Election of the Supreme Pontiff**

There is no question here of St. Peter, the first Pontiff; for it is sufficiently evident from what has been said that Christ chose and installed him: nor of the election of the Ministers of the Church, of which Bellarmine treats in Book 1 On Clerics; but only of the Successors of St. Peter in the supreme Pontificate.

### **First Part: The Doctrines of the Catholics**

I. *First Doctrine.* Concerning the Electors of the Pope and the form of electing, nothing was determined by divine law, but it was left by Christ to the Pontiff himself to dispose concerning the mode of election. So the most common opinion of the Theologians. And hence it has come about, as Arriaga says (Tom. 5, Disp. 7, n. 46), that the Pontiffs themselves have rather often changed the mode and restricted it to fewer persons. For at the beginning the whole Roman Clergy together with the neighboring Bishops was designated. But afterwards, on account of the excessive multitude, the number of the Electors was contracted to a few from the Roman Clergy and several Bishops (cap. 3, de elect. in 6. decretal.; & Clement. 2, de Elect.), whom Sylvester I in a Roman Council called Cardinals, as being the primary and principal men, whereas before they were called Regionarii, as Prefects over the 14 regions of the city of Rome; upon whom afterwards Innocent III, in the year of Christ 1244, imposed the red hat, that by this symbol they might be admonished to shed even their blood for the liberty of the Church, whose danger then stood from the Emperor Frederick II, a capital enemy of the Pontiff. Finally Alexander III (cap. 6, de elect.) prescribed to the Cardinals this form of electing: that not just any plurality of votes should suffice, unless two thirds conspire — e.g., sixty out of ninety.

II. Moreover, still further Electors can be added or substituted, as in the Council of Constance, Session 41, many other Prelates besides the Cardinals were designated for electing the Pontiff. Sometimes the Election of the supreme Pontiff was even conceded to Emperors — whether by the permissive dissimulation of the Church, since, namely, the power of the Emperors arrogating this to themselves could not be beaten back, as with Justinian the elder and his Successors down to Constantine IV; or by voluntary concession for the necessary defense of the Church, as Adrian I granted it to Charlemagne, and Leo VIII to Otto (c. 22 & 23, Dist. 63) — if indeed those Canons are authentic, which Baronius (Tom. 9, An. 794) holds for spurious, imprudently compiled

by Gratian from the schismatic Sigebert. However that may be, Louis the son of Charles renounced this right, and Otto likewise (cap. 30 & 33, dist. cit.); Spondanus may be consulted at A.D. 817.

III. But what if a Pontiff were to abrogate the present-day mode of election, and die before he prescribed a new one? In this case Cardinal Bellarmine (Book 1, On Clerics, ch. 1) thinks the election would devolve again upon the first Electors, that is, the Roman and neighboring Clergy. But it is more probable, as Suárez, Vázquez, Arriaga (loc. cit., n. 48), and many other Theologians judge, that it would be transferred to a general Council, and that by the law of Nature, whose light shows that the supreme election pertains to the supreme power, unless it has been constituted otherwise. Now in the proposed case, the Pontiff being deceased and the Cardinals dead or unwilling to discharge their office, there is no greater power in the Church than that of a General Council. It is confirmed: both because a General Council immediately represents the Church, and the Pope is the Bishop not of the Roman Clergy only, but of the whole Church, and as such has supreme jurisdiction; and because it belongs to any community in a case of necessity to provide itself with a Head. Nor does it matter that before the appointment of the Cardinals the right of electing the Pontiff was with the Roman Clergy, as said above; since that ordinance was only a human law, abolished and never reviving.

IV. *Second Doctrine.* The legitimately elected Pontiff does not receive his power from men, but immediately from Christ himself, to whom the elected person is presented. So, from the common view of the Doctors, Cajetan (Tom. 1, Opuscul., Tract. 1). The reason is clear: because no one can give to another what he himself has neither formally nor eminently. But the Electors of the Pope have the Pontifical power neither formally nor eminently. Therefore they cannot confer it on another. This Election, then, is only a condition without which God would not transfer the power of the Pontiff to a man — not, however, the cause or means by which the Electors themselves bestow that power upon the elect; just as a Cleric presented to the Bishop by Patrons does not receive his Spiritual right from the Patrons, but from the Bishop.

V. Formerly the question was rather grave, whether it is of faith that the supreme Pontiff existing for the time being is the true Pontiff. Theologians of great authority stood on both sides, as may be seen in Diana, part 11, Tract 2, on the infallibility of pontifical decrees, Resolution 6, where for the negative side he adduces first of all Master Báñez on the 2-2 of St. Thomas, q. 1, art. 10, dub. 2, ad 2; Cajetan on the cited q. 1, art. 3, ad 4; and Castro, Against the Heresies, Book 1, ch. 9. The same is held by Cano, Book 6 of On the Theological Places, ch. 8, q. 1, ad 10; Malderus, Disp. 5 on the Supreme Pontiff, in the solution to the 4th; and not a few others, to whom Cardinal Bellarmine may be added, On Councils, Book 2, ch. 9, where, replying to the last objection, he says that it is held only by natural evidence and human faith that the Councils of Nicaea and Ephesus

were legitimately convened, and that this suffices for the things defined by them to be held as of faith. For it is evident that it is the same question (so far as concerns our present purpose) whether it is of faith that this Council is or was legitimate, and whether it is of faith that this individual Pontiff is the true Pope. In the affirmative opinion today the Doctors of almost all the Academies conspire, and with them let our position stand.

VI. *Third Doctrine.* It is of faith that this individual Pontiff existing for the time being — namely, now Innocent XI, whom the whole Church acknowledges and receives as legitimately elected — is the true Pontiff and the Head of the whole Church. So by name, from our Society, Fr. Alphonsus Salmerón, Valencia, Suárez, Hurtado de Mendoza, Tanner, Amicus, Oviedo, Arriaga, Castro Palao (Tract 4, Disp. 1, num. 5, § 2), Martín de Esparza (On Faith, Quest. 29), Cardinal de Lugo (Disp. 1 on Faith, Sect. 13), Cardinal Pallavicino (ibid., num. 140), and — lest I be too long in recounting — all the rest of our Fathers today. And Clement VIII gave great strength to this doctrine, who, as Diana testifies, threw into prison several Doctors asserting the opposite, and ordered them to come to Rome to render an account of their opinion. It is proved, first: It is of faith that everyone canonically elected who enters upon the Apostolic Chair is the true Pontiff and Pastor of the universal Church. But this individual Pontiff, Innocent XI, who has been accepted by the common consent of the Church, has been canonically elected as Head of the Church. Therefore, etc. The Major is certain in the same way as this: it is of faith that he is a saint who has been legitimately canonized. Proof of the Minor: Whatever the whole Church firmly believes in matters pertaining to Religion is true, since she is the *pillar and ground of truth* (1 Tim. 3:15) and cannot err by acknowledging as true Pontiff one who is not such — as he really is not who was not canonically elected. But after the inauguration and promulgation of a Pope, and his universal acceptance and approbation, the Church firmly believes that he was legitimately elected. Therefore it is true, etc.

VII. It is proved, secondly: Pope Martin V decreed in the Council of Constance that to heretics wishing to be reconciled to the Church it should first be proposed *that they believe that the canonically elected Pope who for the time being shall be (his name being expressly stated) is the Successor of Peter, and has supreme power in the Church.* Therefore the Pontiff supposed this to be of faith, since from a heretic nothing is exacted except assent to things pertaining to the faith — and that an absolute assent, not one virtually conditioned (namely, “if this Pontiff has been canonically elected”); for such an assent would be futile.

VIII. It is proved, thirdly: Because we must believe by faith all the things defined in the Council of Trent, for example, and in the other legitimate General Councils. Therefore we must believe by faith that it is a legitimate Council; just as, because we must believe by faith all the things contained in the Gospel of St. Mark, we must also believe by faith that it is a true and canonical Gospel; for if we could prudently doubt or fear concerning the legitimacy of a Council, we could also doubt or fear concerning its definitions. Since

therefore the validity of a Council depends on the consent and approbation of a true Pope, without which approbation a Council does not have the authority of a legitimate Council, it follows that by the same faith the true Pontiff must be believed, from whom the legitimate Council has its authority and validity.

IX. The Adversaries say that Trent would have been infallible even if it had not had a true Pontiff, but only one esteemed such by the Church. Let this pass; yet it would not have been legitimate in point of fact, since these are different things, and more is required for the latter than for the former. I said “let it pass.” For the Adversaries must prove from Holy Scripture that this infallibility is promised to a Pseudo-pope. If, then, they should bring forward those testimonies by which we are commanded to hear the Church, and by which it is promised to the Church that she shall never err, as being the pillar and ground of truth, and should wish to infer from them that it pertains to divine Providence that God should so govern even a Pseudo-pope that he not lead the whole Church into error — we shall say with better right, and shall gather from those same passages, that it pertains to the providence of God not to permit that the whole Church err concerning the Pope by receiving as legitimate one who through a hidden impediment is incapable. For when it is said in Matthew 16:18, *upon this Rock I will build my Church*, all Catholics confess that the promise was made to Peter and his Successors — which is not without violence extended by the Adversaries to a pseudo-Successor: both because a putative Successor is not absolutely and simply a Successor; and because, by the very fact that Christ promised that His Church would be founded upon the Successors of Peter, He also promised that He would always provide Successors; but who would say that a putative Successor is a work of divine providence?

X. It is proved, finally, fourthly: The Church, above all as joined to her Head, cannot err. But the universal Church together with her Head holds that Innocent XI is the true Pontiff. Therefore it must be held by divine faith — or else it must be said that the Church together with her Head can err by recognizing as true Pope one who really is not such. Báñez distinguishes between practical and speculative error; he calls it the former when one errs while prudence is observed, the latter when someone judges about a thing otherwise than it is in itself; and this latter he concedes can happen in the present case — just as, he says, the Church long erred speculatively in judging Eunuchs capable of marriage, until through Sixtus V she was taught the truth. But this response is easily refuted; because the universal Church, in those things which she proposes concerning the inanimate rule of faith, which is Sacred Scripture, cannot err not only practically but also speculatively. Therefore she likewise cannot err in receiving the animate rule of faith, which is the supreme Pontiff. The instance about the Eunuchs proves nothing; for the Church did not judge the marriages of Eunuchs to be true and approve them as such, but only tolerated and permitted them, until she should apply herself to rendering judgment upon them.

XI. Our foregoing Doctrine is confirmed by the solution of those arguments which are brought by the Adversaries for the opposite opinion. *The first.* It does not appear whence it could be established that this individual Pontiff, e.g., Innocent XI, is the true and legitimate Pope. For it is neither included in the general revelation, nor can it be specifically shown where and when this was revealed. Response: according to the almost common opinion of the Theologians, that this individual Pontiff is the legitimate Pontiff was revealed both in this universal proposition: *Everyone legitimately elected and promoted to the Chair of Peter is the legitimate Pope*; and in that other, that the Church is the pillar and ground of truth, and cannot err in matters pertaining to Religion. For in this general rule, says Cardinal de Lugo (loc. cit., num. 330), it is contained that she cannot err in recognizing this individual as the true Head and visible Rule of the Catholic faith — wherein she would err more gravely and more perilously than concerning some particular object of faith which was not the foundation of the others, as the visible Rule is the foundation of the Faith and of the Church, which for that reason is said to be founded upon Peter and his Successor — so that, accordingly, from the fact that the Church acknowledges and accepts this individual Pontiff as true Pontiff, it becomes certainly and sufficiently known that the same is contained in that former proposition, and has been legitimately elected and promoted to the Chair of Peter.

Arriaga (Disp. 7 cit., num. 52) by no means rejects this universal response, yet thinks moreover that this individual Pope's being the legitimate Pope has also been specially and newly revealed to the Church. For GOD, he says, reveals something in two ways: either properly, by speaking outwardly or inwardly with him to whom He reveals — in which manner it is not necessary that there be given now in the Church a universal revelation for believing; or in another way, in the exercised act, by not permitting that he who proposes a matter should in any way stray, but so directing his intellect, disposing it by His providence, that he touch the truth. In this latter way, then, the cited Author holds that God reveals to His Church that this individual Pontiff is the legitimate Pontiff; for He does not permit that anyone be proposed to the whole Church undoubtingly as true Pope who really is not such; and that He does not permit this, we have from the fact that He promised that He would be with His Church — a promise He must fulfill most of all in this point, on which the government of the whole Church and the declaration of the things to be believed depend.

XII. Moreover, the same valid election becomes evident to us from this, that the Cardinals and the Bishops and the Clergy and almost the whole Body of the Church accept that election without contradiction. And as for what is commonly said, that, setting aside the Pope himself, *GOD reveals nothing to His Church*, a distinction must be made: when the Pope has already been received as true and legitimate Pontiff, and a matter is to be decided by him, we grant that GOD then exercises that His infallible assistance toward him alone; but in order that the Pope himself be received as such, He must effect this through the Church; wherefore, directing her lest she err in such an

election, He reveals to us, in that other way we have mentioned, who is Pope and Head of the Church. Whence it is further evident when it begins to be of faith that this individual Pontiff, elected for the time being, is the true and legitimate Pontiff: namely, when the whole or nearly the whole multitude is seen to assent uniformly to the legitimacy of the election, or so many and such have already assented that it cannot prudently be doubted that the rest will come to the same opinion, considering the circumstances which become known close at hand; for no more suitable proposing of this article either exists in fact, or can easily be conceived to exist, acting conformably to the human condition and in a human manner, to which divine providence accommodates itself, as Fr. Esparza well observes, quest. 29 cit.

XIII. *A second argument.* To believe that this man is the true Pontiff supposes that he has been duly baptized, since no one who is not baptized is capable of the Papacy. But this we cannot know concerning the aforesaid Pontiff, since it is not established for us whether the one baptizing had the intention of baptizing. Response: by the very fact that it is revealed that this man, e.g., Innocent XI, is the true Pontiff, it is also revealed, at least implicitly, that he is baptized. For if Baptism is included as an essential part in the truth of the Papacy, as many hold, then Baptism itself will also be of faith, because it will be immediately revealed, although confusedly, as a part in the whole. But if, as we judge more probable, baptism is not included formally in the truth of the Pontificate, but is essentially preredquired as something extrinsic and connoted, in order that GOD confer the power upon this man, then it will be revealed more implicitly, because it follows from two propositions of faith, namely: that every true Pontiff is baptized; and that this individual man is the true Pontiff. Since therefore it is established from Scholastic Theology that the object of a conclusion which is inferred from two revealed premises can also be believed immediately of faith, without discourse, from the things revealed — it must accordingly, as explained, be said in consequence that the baptism of this individual Pontiff accepted by the Church is of faith. And so, the Major being conceded, the Minor is distinguished: that we cannot know with certainty before the acceptance of the Church, we concede; after that acceptance, we deny; whence it only follows that — this individual Pontiff's being baptized, being the legitimate Pontiff, etc. — is not to be believed by us of faith absolutely before the acceptance of the Church; it is otherwise after that acceptance.

XIV. What we have said of Baptism, most Authors will have said also of Sacred Orders. But Arriaga affirms nothing about these. For, he says, the whole jurisdiction in which the Papacy properly consists is independent of Sacred Order. If then a true Pope can exist without orders for half a year, why not for a whole one? If you infer: Then, if he ordains and absolves Sacramentally, he will be able to err, which is to the great prejudice of the Church — the cited Author replies (num. 51) that as to this the prejudice would perhaps be no greater than if another Bishop or a simple Priest were to absolve and ordain; which

may seem not altogether improbable. Nevertheless the former opinion is to be retained as the common one; since it assuredly matters more to the Church that the Pope cannot err in ordaining and absolving than a private Bishop or Priest.

XV. *A third argument.* He who would withdraw from the present supreme Pontiff would indeed be a schismatic, but not a Heretic. Therefore it is not of faith that he is the legitimately elected supreme Pontiff; since to withdraw from some dogma pertaining to the faith is heresy, and not schism only. Response: since heresy and schism differ in formal character, it is by no means necessary that every schismatic be a Heretic; for he who acknowledges the unity of the Church and the primacy of the Pontiff, yet out of malice refuses to be subject to him and, in this subjection, to communicate with the remaining members of the Church, is reckoned purely a schismatic; but if anyone were to withdraw with an error of the intellect, whereby he would not believe that he whom the Church has received and retains as supreme Pontiff is the true and legitimately elected supreme Pontiff, he would truly be a Heretic — supposing that the proposition of which we are treating pertains to the faith. Castro Palao may be consulted, Tract 6, Disp. 4, p. 5.

XVI. *The fourth and last argument.* By Ecclesiastical laws an election made with a hidden impediment — e.g., of Simony, of an insufficient number of votes, etc. — is voided. Therefore one so elected will be only an apparent Pontiff, even if afterwards he is accepted by the whole Church; because, according to the rule of law, what is defective from the beginning does not become valid by the passage of time. And if it be said that it pertains to divine Providence not to permit that an election be made void by such an impediment, it follows that those impediments voiding an election, even when they are hidden, were introduced wrongly and in vain. Response: the aforesaid Laws neither have, nor can have, place, nor ought they to be understood, except of the first election, through which, made by the Cardinals, it does not at once become certain by faith that the one elected is the true Pontiff. If therefore that election be supposed void by reason of a hidden impediment, there succeeds another election, voidable by no positive law, which the Church makes by accepting that man as true Pontiff; and although this acceptance proceeds from the preceding error, it is nevertheless not conditioned, but absolute; for it is better that the Church should hold for true Pontiff someone who was invalidly elected, than that she should unknowingly lack a true Pontiff and venerate as such one who in reality is not. And therefore in the aforesaid case there resides in the universal Church the power of providing herself with a legitimate Head, supplying all defects of law, lest she remain headless; and that this power of electing resides in the Church is established by the arguments we have adduced for our present doctrine; and the Church is deemed to elect, as it were a second time, him whom she accepts. The other arguments which the heretics object against this same doctrine of ours we shall resolve more conveniently in the other part.

XVII. *Fourth Doctrine.* The supreme Pontiff can also lose his power again. So all the Doctors, who affirm this can happen in three ways. First, by voluntary renunciation of the supreme Pontificate, as was defined by Celestine V, as appears from his decree, which was inserted into the common law (c. 1, de Renunt. in 6). There it is said that the Roman Pontiff can — above all when he recognizes himself insufficient for governing the Church and for sustaining its burdens — renounce the Papacy; which decree that holy Pontiff sealed by his own example, for the perpetual memory of the thing, in the year of Christ 1294. That Benedict IX did the same before Celestine, Spondanus writes at the year of Christ 1044. Whether, however, this renunciation, in order to take effect, must be accepted by the Church, is not sufficiently settled. Arriaga affirms (Disp. 7, num. 57), deeming the point altogether certain, since the Pope then has no Head above himself. Bellarmine more probably denies (Book 2, On the Pontiff, ch. 29), because Christ does not confer the Pontificate independently of the Church; therefore neither does He take it away. Whence the answer to the reason for the opposite side is clear: for the Church would not then be exercising an act of power over the Pope, but would only be giving her consent as a condition, without which Christ would not will to take away the Pontificate.

XVIII. *Secondly*, by perpetual insanity, should a Pontiff fall into it. So the Doctors commonly, asserting that he then falls from the Pontifical power by divine law itself. For the foundation of jurisdiction is the use of reason, so that perpetual insanity, as regards the capacity for jurisdiction and dignity, is equivalent to death.

XIX. *Thirdly*, by Heresy, if a Pope should lapse into it and, being admonished, should not repent. So all the Doctors; among whom, however, it is not agreed whether that loss of the Pontifical power happens by the very fact and by divine law, at least if the heresy be notorious and openly divulged in the Church, or rather only after a declaratory sentence of the crime. The former is held by many of the older Theologians and Canonists, whom Bellarmine (Book 2 cit., ch. 30) and Tanner (Tom. 3, D. 1, § 4, num. 174) follow. They are moved: both because even a declaratory sentence of the crime requires jurisdiction, which the Church does not have over a Pope; and because the Pope is Superior to all the Bishops — how then can he be judged by them?; and because Heretics are to be shunned by the precept of Christ and the Apostles: therefore an obstinately Heretical Pope ought not to remain the Head of the Church, since him above all we ought not to shun — nay, we must have recourse to him in the principal causes. The latter is more probably asserted by the more Recent Theologians, whom Arriaga (Disp. 7 cit., num. 58) reports and follows. It is proved: both by the authority of Clement I, who in his first epistle attests that St. Peter taught that a Heretical Pope is to be deposed; and because the loss of the Pontifical power is by far the gravest of penalties: therefore we ought to have an express divine law in order to assert that it is incurred by the very fact; but no such law can be shown. Wherefore it is more likely that the aforesaid penalty is not incurred by a heretical Pope before the sentence of the Church, that is, of the Bishops gathered into



one; and such a universal Council can in that case be convoked even without the knowledge — nay, against the resistance — of the Pontiff, and that by divine law known through tradition, as the common opinion holds; and it seems highly conformable to reason that, since after the Pope they are the Pastors of the Church, they should also be the Judges in this same cause.

XX. We reply to the first reason for the opposite view: in the case of heresy the Church has a right over the Pope, and so she can proceed in order to the declaration of the crime — even though for this no jurisdiction over the Accused is necessary; for if some glorious deed, e.g., of one to be Canonized, can be juridically declared without jurisdiction over its Author, why not also the crime of heresy concerning a Heretical Pope? You will infer: Then, when the crime is so clear and public that it plainly needs no further proof, by that very fact he is already reckoned deposed without a new Council. We deny the inference; for granted that for the publication and proof of the offense this is not necessary, yet because that same thing must be authentically proposed to the whole Church, that Council will be necessary, so that the matter be done juridically and it be declared that an election is to be proceeded to. But if before the Council his amendment is established, he cannot be deposed unless he has relapsed; for then it is presumed that the Heretic is by right to be deposed. To the second: the Church then stands only as the declarer of the crime; but it is Christ who immediately takes the jurisdiction from that Pontiff — just as, conversely, we said above regarding the Election, that the Church stands as the designator of the person, but Christ as the giver of the jurisdiction. To the third: a Heretic is altogether to be shunned when his crime is duly established; which in the present case we assert does not happen before the judgment of the Church is added. And certainly, if a Pope fell from his dignity immediately upon heresy, grave inconveniences would follow in the Church; for we could always doubt whether he were not an occult Heretic; and if the heresy were external but not sufficiently proved, the same inconveniences would intrude, because it would stand just as if it were occult. Wherefore, since we suppose that heresy is not destructive of the Pontifical dignity, even if it be external it does not in fact take that dignity away, but only makes it possible for the Pope to be judged for such heresy.

XXI. What we have said of heresy is to be held in its own way also of schism, when from several elected at the same time it cannot be discerned which one has been legitimately elected; for then, for the public good of the Church, each of the elect is bound to renounce his right; and if he will not, he can be deposed — as in the year of Christ 1177, in the Council held at Venice under Alexander III, a certain John, Abbot of Struma, whom they called Callistus III, was stripped of office. Spondanus may be consulted at the aforesaid year, where at n. 9 he says the same man was degraded, and cast down and reprobated by the Emperor Frederick himself and by all the Ecclesiastical and Secular Princes. For the rest, no inconveniences follow in such a schism, even if some adhere to a supposed Pope. For when the schism has been removed they are united

to the legitimately elected Pontiff, and from him they seek the confirmation of those graces which they received from the apparent Pope; and thus by that very fact the danger of irreparable harm and of false dogmas already ceases. Hence the Pontiffs who afterwards are found legitimate without contradiction are wont either to invalidate or to revalidate the things done under the schism, as they judge expedient for the good of the Church. So did Martin V, after at last he had been legitimately and without controversy elected and recognized as Pope, the schism being utterly destroyed.

XXII. *Fifth Doctrine.* Outside the case of heresy or apostasy, the Pope can never be deprived of his power — neither for any crimes however grave and notorious, nor for other inconveniences or calamities. So, against the Gloss on c. si Papa, dist. 40, the Doctors commonly. The reason is: lest occasion be taken for accusing and expelling a Pontiff unjustly from his See, likewise for making schisms, etc. Hence the Axiom from c. Nemo, qu. 3: *The First See is judged by no one.* Bellarmine may be consulted (Book 2 cit., from ch. 27); likewise the Book On Clerics, ch. 9, where he asks whether a Pope can designate his own Successor. This question is treated also by Suárez (Tom. on faith, Disput. 10, Sect. 4), Amicus (ibid., D. 6, num. 205), Arriaga (Tom. 5, Disp. 7, n. 47), and others, who may be consulted; for our purpose that question has no utility.

## **Second Part: The Errors of the Heretics**

XXIII. *The first Error:* That of the Roman Pontiffs none was a legitimate Successor of Peter. So commonly all the heretics, whose arguments are heaped together by John Gerhard (Book 2, part 1, from fol. 468), du Moulin (Book 3, ch. 3, from fol. 312), Amelius (Tom. 1, from fol. 159), and other Sectarians; all of which can be reduced to these four groups. *The first* is drawn from the authority of the Historians Platina, Martin of Poland, and the Uspergensis, who testify that the Primacy was granted to the Roman Pontiff not by Christ but by the Emperors, and namely by the impious Phocas.

XXIV. *The second* is brought out from the Councils and Fathers, who did not acknowledge the Primacy of the Roman Bishop — nay, did not even dare to arrogate it to themselves; which, say the Adversaries, is openly evident: 1. from the Council of Chalcedon, where Cyprian and the other assembled Bishops, in letters written to the Pope, called him not Father or Pastor but Brother, as their equal. 2. In the Sixth Council of Carthage appeals to the Roman Pontiff were prohibited: therefore he was not acknowledged as supreme Judge; for, as Calvin writes (Book 4, Instit., ch. 7, § 9), it is evident that the supreme command rests with him to whose tribunal appeal is made. 3. Polycrates, an Asian Bishop, and Irenaeus resisted Pope Victor when he would excommunicate the Asiatic Bishops. 4. St. Jerome writes in epistle 85 to Evagrius: *Wherever a Bishop shall be, whether at Rome or at Constantinople, he is of the same worth, and also of the same Priesthood.* Therefore he acknowledged all Bishops as equals, and none Superior to another. 5. Cyprian (Book 1, epist. 5) calls desperate and

lost those who think the authority of the Bishops constituted in Africa to be less than are the Bishops of Rome. The same asserts that no one is to be called Bishop of Bishops, that no Bishop is to be judged by another, but by Christ alone. Therefore he did not consider the Bishops to be subject to the Roman Pontiff.

XXV. *The third* is seized from the life and morals of the Roman Pontiffs, of whom, as the heretics say, many were unworthy of the name of Pope, being Magicians, Sorcerers, heretics, adulterers, homicides, simoniacs, etc. From Sylvester II to Gregory VII there were fifteen Popes openly held for Magicians, as many Historians testify, to whom may be added St. Antoninus (p. 2, hist., tit. 16, cap. 1, § 18), writing the same of Sylvester. Formosus I was a factious man; Boniface VII nefarious; Sergius III unspeakable; John XI, the most base Son of Sergius by the harlot Marozia; John XII utterly impure, who also perished caught in adultery. And others most criminal, so that Genebrard in his chronology (fol. 540) writes in these words: *for about 150 years, about 50 Pontiffs — from John, namely, the VIIIth, who succeeded Nicholas and Adrian, albeit most holy Pontiffs, down to Leo IX (who, first called by GOD like another Aaron, recalled the ancient integrity of the Pontiffs to the Apostolic See) — fell away utterly from the virtue of their Ancestors: apotactici, Apostatics rather than Apostolics.* The same Author testifies that some got into the Papal See by Simony, that others were intruded into it. How then were all the Pontiffs legitimate Successors of Peter?

XXVI. *The fourth* and last argument is deduced from the reasons — in the opinion of the Sectarrians either false or ridiculous — by which the Pontiffs could not prove their Primacy. E.g.: in the Sixth Council of Carthage three Pontiffs, Zosimus, Boniface, and Celestine, alleged for their supreme Pontificate a certain canon of the Council of Nicaea which the African Bishops could find in no book, so that it must accordingly be a fabrication. 2. In the Council of Florence Eugene IV brought forward for his Papacy the posthumous letters of Joseph, Patriarch of Constantinople, already dead at Florence, which he is supposed to have written dying and trembling. But who would believe that a man near to death and trembling could write? 3. Pope Anacletus (c. 2, Dist. 22) says it was granted to Peter that he should be Cephas, that is, the Head, and should hold the Primacy of the Apostolate — insinuating, as the Gloss expresses it, that the name Cephas is taken from the Greek κεφαλή, Head; whereas it is a Syriac word signifying not Head but rock, on the interpretation of John the Evangelist, ch. 1, v. 42. Innocent III (c. 6, de Majoratu & obed.) most ineptly proves that the Pontiff is above the Emperor because GOD made two luminaries, the Sun and the Moon — that is, the Pontiff and the Emperor — and that the former is greater than the latter as the Sun is greater than the Moon. Boniface VIII, in the Extravagant Unam Sanctam (eod. tit.), proves that the Pontiff has a twofold jurisdiction, temporal and Spiritual, because the Apostles (Luke 22, v. 20) said to Christ: *Behold, here are two swords.* In the same place he proves that the Pontiff is the supreme and universal Judge, because Paul (1 Cor. 2, v. 15) says: *The Spiritual man judges all things, and he himself is judged by no one* — as if the Pontiff alone were

Spiritual. In the same place he proves that there is one Head of the whole Church, because in Genesis 1, v. 1 God is said to have created all things *in the beginning*, not in *beginnings*.

XXVII. This enormous Error is unanimously rejected by the Sacred Councils and the Fathers who have written on the Succession of the Pontiffs. Among the Councils, that of Florence, with the Greek and Latin Fathers consenting, determined thus: *We define that the Holy Apostolic See and the Roman Pontiff himself is the Successor of Blessed Peter, Prince of the Apostles, and the true Vicar of Christ, and that he stands as the Head of the whole Church and the Father and Teacher of all Christians, and that to him, in Blessed Peter, was handed over by our Lord Jesus Christ the power of feeding, ruling, and governing the universal Church.* Among the Fathers, St. Augustine in epistle 102 says no less efficaciously than briefly: *in the Roman Church the Principate of the Apostolic Chair has always been in vigor.* Whence also in the Constitution Novella 131 of Justinian, *according to the decrees of the Sacred Synods the Primacy is attributed to the Most Holy Bishop of elder Rome.* The arguments of the Sectarians are all ruinous and destitute of their foundations. Nor would you speak amiss in calling the heretics, in their endeavor to abolish the Papacy, like spiders: both because, after the manner of spiders, they weary and eviscerate themselves for a work of no strength or worth at all; and because from fair flowers they suck out nothing but poison, as will appear in the solution of everything they bring forward. Therefore:

XXVIII. We reply, first, *to the first argument, taken from authority.* If, properly speaking, the Roman Pontiff is not the Head and Pastor or Primate of the whole Church even by Apostolic Authority or by the statutes of Councils, much less can he be such by Imperial Authority, since it does not belong to Emperors to confer on others the Ecclesiastical and Spiritual power of which they themselves are destitute. Certainly, that the Pontiff has that supreme power of his from no other than from him from whom St. Peter had it, and that St. Peter had it from nowhere else than from Christ, and in virtue of this institution, is luminously demonstrated from Holy Scripture, the Fathers, and the history of all Antiquity, as is sufficiently and abundantly evident from what we said above. The History on which alone the argument leans was corrupted by the heretics. For the Emperor Phocas did not give the Primacy to the Pope, but only defended it against Cyril, Patriarch of Constantinople, who was scheming to equal himself to Boniface the Roman Pontiff and to usurp the title of Universal Bishop; see Cardinal Baronius in the Ecclesiastical Annals at the year of Christ 606. It is also openly evident from the civil law (L. 8, C. de sum. Trin. & Fid. Cath.; from Novella 131, Collat. 9, tit. 14, c. 2) that the ancient Emperors before Phocas — as Valentinian, Gratian, Theodosius — had already acknowledged the Primacy of the Pontiff. There is also extant, in Tome 2 of the Councils, the Epistle prefixed to the Council of Chalcedon of the same Valentinian III, Emperor in the East (who preceded Phocas by 170 years), to Theodosius II, Emperor of the West, in which for the present matter he speaks thus admirably: *We ought to defend*

*with all fitting devotion the Faith handed down from our Ancestors, and to preserve inviolate in our own times too the dignity of proper Veneration for the Blessed Apostle Peter; so that the Most Blessed Bishop of the Roman City, upon whom all Antiquity has always conferred the Principate of the Priesthood, may have place and faculty to judge concerning the faith and Priests.* In which two things are singularly to be noted. First, that *Antiquity conferred on the Bishop of the Roman City the Principate of the Priesthood over all* — that is, all Antiquity back through time, not the Valentinian III I mentioned, nor other Christian Caesars before him. The other, that the Dignity of the Blessed Apostle Peter is called *the dignity of proper veneration* — which, namely, is attributed to Blessed Peter in his Successors and to no other. What more illustrious can be found for the legitimate Succession of St. Peter in the Principate of the Roman Pontiff — and that most ancient, before the times even of Valentinian himself, which are those times that even for our Sectarians are pure, and chaste and whole in Faith? Hence, then, are refuted not only the Magdeburgians, who in Century 5 wrote that the Primacy of the Church was annexed to the Roman Episcopate by the authority of Phocas, but also Wyclif and Hus, who, as reported in Waldensis (Book 2, doct. Fidei, ch. 7), said this was done by the decree of Constantine the Great; likewise Luther and Calvin, of whom the former, in his book *On the power of the Pope*, pinned the same on a statute of Constantine IV, the latter (Book 4, Instit., ch. 6) on a decree of the Emperors Pepin and Charlemagne. Because all these are later in time, and cannot give a spiritual power which they themselves do not have. Fr. Adam Tanner may be consulted in the *Dioptra Fidei*, Book 3, ch. 6, where he refutes this argument of the Adversaries at length.

XXIX. We reply, II, *to the second argument, brought out from the Councils and Fathers:* that it is far most alien from the truth that of old neither Councils nor Fathers acknowledged the primacy of the Roman Bishop, and that the Roman Pontiffs themselves did not dare to arrogate it to themselves. For the contrary is most openly shown by Bellarmine (Book 2, *On the Pontiff*, from ch. 12), with very many luminous testimonies of them adduced — which we too have done thus far; and it is also sufficiently evident from the recently cited constitution Novella 131 (collect. 9, tit. 14, c. 2), where Justinian says: *we sanction, according to the definitions of those Sacred* — namely the four — *Synods, of Nicaea, of Constantinople, of first Ephesus, and of Chalcedon, of which (the Emperor) was speaking immediately before, that the most holy Pope of elder Rome is the first of all Priests, and that the Most Blessed Arch-Bishop of Constantinople, the new Rome, holds the second place after the Holy Apostolic See of elder Rome, and is preferred to all the other Sees.* To the first instance we say that the appellation of Brother in no way impedes the Primacy, for all the Faithful called one another Brothers as sharers of the same Faith. In order therefore that the Bishops of Chalcedon might profess that they conspired in Faith with the Roman Pontiff, they named him Brother; meanwhile protesting his eminence in other ways: since, namely, they gave the first place to the pontifical Legates, and honored Leo I, then Pontiff, with most honorific titles, as is evident from Acts 1 and 2, where Aetius, Bishop of Nicopolis,

calls the same St. Leo our Lord and most holy Pope: *since*, he says, *now the Epistle of our Lord and Most Holy Pope has been read* — as Bellarmine reports, ch. 31. To the second: the Fathers there assembled did not prohibit appeal to the Roman pontiff, as the Heretics falsely cite, but by suppliant letters deprecated the too-rigid mode of proceeding by armed soldiery, as Cardinal Baronius shows, and his Epitomator Spondanus, around the year of Christ 419. For the rest, that all the Bishops of the whole World who in Ecclesiastical judgments feel themselves aggrieved may appeal from Bishops and provincial synods, and take refuge with the Roman pontiff as with a Superior Judge, to whom all the remaining Bishops must be subject, and from whose sentence it is not lawful to appeal further, is most openly evident from canon 4 of the Council of Sardica, where it is decreed: *if any Bishop be deposed, and he appeal against this judgment of the Provincial Synod to the Pope, let no other be ordained as appointed in his place, unless the cause of the deposition shall have been determined and approved in the judgment of the Roman Bishop*. Wherefore it is a calumny of Calvin when he says that appeals were derided; nay, that they were received with honor, and were efficacious, Baronius shows (loc. cit.); and by his own example St. Athanasius teaches it — a man most Catholic, most holy, and most learned — who appealed from the Eastern Bishops to Julius the Roman Pontiff after the year of Christ 341, and by him was restored.

XXX. What do Amesius, Gerhard, du Moulin, Heilbrunner, and the other Sectarians say to these things? In vain they attempt three evasions. *First*: that Ecclesiastical Appeals are not to a Superior jurisdiction, but to a common communication of fraternal aid. Did all Antiquity, forsooth, not know what an Ecclesiastical Appeal is? Assuredly Athanasius, Patriarch of Alexandria, unjustly condemned by the Easterners, sought from Pope Julius no mere communication of aid of whatever sort, but required a just defense as before a Superior Judge. *Second*: that the Council of Sardica, on Bellarmine's testimony, was not approved in its entirety. Three hundred Fathers of this Council confirmed the Catholic Faith; whence that Synod is called a part or appendix of the First Council of Nicaea: and whatever those Fathers determined was universally received — and among those things the right of appealing to the Roman Pontiff is held approved. Besides the aforesaid Fathers there were indeed seventy-six other Eastern Bishops who subscribed the Arian creed; but against the decrees of the rest they could do nothing. *Third*: the Eastern Bishops in the Council of Antioch resisted Pope Julius because he had absolved Athanasius, who had fled to him after being condemned in an Eastern Synod, and had restored him to his See — alleging that he usurped more authority than he ought. Therefore (they say) nothing is proved from this deed. By this evasion the Adversaries entangle themselves the more. For among those Bishops who resisted Pope Julius there were 36 Arians, as Baronius reports, and from him Spondanus, at the year of Christ 341, num. 3; whereas on the contrary Athanasius, who stood for Julius, was a man, as we have said, most outstanding in Catholic faith, in sanctity of life, and in excellence of doctrine. To this argument, then — *The Eastern Bishops, who in great part were Heretics, resisted the Pope: therefore they did not hold him for the Head of the Church* — to this argument,

I say, we oppose this other: *Athanasius, a man most Catholic, most upright, and most learned, appealed from the Eastern Bishops to the Roman Pontiff as to a Superior Judge: therefore he acknowledged him for a Superior Judge.* Which of these two argumentations is the stronger? The Adversaries believe Heretical Bishops: we side with a Catholic Patriarch, one as most holy as he is most learned. Nor should it be passed over in silence that the aforesaid Heretical Bishops, afterwards acknowledging and detesting their error, came to Rome and as suppliants begged pardon of Pope Julius, as Athanasius himself testifies in the Apology against the Arians, and Spondanus reports at the year of Christ 351, n. 7.

XXXI. To the third instance, from the Fathers, we say: Polycrates and Irenaeus never denied to Pope Victor the power of excommunicating the Bishops of Asia, but they thought the cause for inflicting this excommunication was not sufficient, and therefore opposed themselves to him, as Baronius well notes at the year of Christ 198 — which does not derogate from the power and jurisdiction. To the fourth: St. Jerome did not equate the Bishops with the Pope insofar as he is universal Pastor, but insofar as he is Bishop of Rome; yet he erred, if he thought the distinction of Priests and Bishops was introduced by human law alone — an opinion condemned in the Council of Trent, Sess. 23, c. 4, as Vázquez declares at length (3rd part, Disp. 230, c. 1). But Gregory of Valencia excuses him from error (Tom. 4, Disp. 9, Q. 1, pun. 2); we shall treat of this in its place. To the fifth instance, finally, we say: the earlier words of Cyprian were corrupted by the Heretics, who fraudulently sewed on those words, *than the Romans*; whereas the Author meant to say no more than that *the authority of the African Bishops is not too little for them to be able to judge causes.* The later words of Cyprian, uttered in the Third Council of Carthage, are not to be regarded: both because that Council was illegitimate; and because Cyprian at that time was engaged in error concerning the Sacrament of Baptism, as though it could not be validly administered by Heretics, and therefore converts would have to be baptized anew. Wherefore, being rebuked by Pope Stephen, who held the opposite from Apostolic tradition, out of anger and the instigation of Firmilian, Bishop of Caesarea in Cappadocia, he spoke more hotly than was just, and sinned, says St. Augustine (book 3 against the Donatists, ch. 18), in that he would not obey Pope Stephen. But this his error he afterwards corrected, and washed away with the shedding of his blood, on the witness of the same Augustine, epistle 48 to Vincentius. Bellarmine may also be consulted, book 2, On the Pontiff, ch. 25.

XXXII. We reply, 3, *to the argument snatched from the life and morals of the Supreme Pontiffs*: just as both Christians universally, and in particular not a few most pious Emperors and other Princes, must bear certain unworthy judgments from Tacitus, Lucian, Zosimus, Rutilius, Eunapius, and other Pagan Writers, so also concerning the Supreme Pontiffs many scandalous things were written, since between them and the Germanic Emperors there were grave and long controversies, and the Christian people itself was divided into almost two parties, of which the one adhered to the Roman Church, the

other to the Caesars. Whence those adhering to the Emperors labored to tear the life and morals of the Popes with various calumnies — such, by name, were Aventinus, Bale, Benno the Pseudo-Cardinal, Wier, Thummus, and perhaps also Platina, Sigebert, and others zealous for the Caesarean Dignity even to a fault. To speak in detail:

XXXIII. Sylvester II is undeservedly accused of Magic, as Onuphrius Panvinius demonstrates in the additions to Platina; and Cardinal Baronius, A.D. 999, from Dithmar (book 6), from Helgald in the life of Robert King of the Franks, from Glaber, Lambert, Hermann, Marianus Scotus — who, all living around the year of Christ 1000, both praise Sylvester II for his learning and place him in their chronologies as true Pope after Gregory V, no mention being made of diabolical magic. Whence Sigebert and the rest, far later in time, deserve no credence in this matter. Christoph Lehmann, in the Chronicle of Speyer (book 4, ch. 15), joins Sylvester II to the Witnesses of the Truth, asserting from Theodoric of Niem that he was held in hatred by the Romans on account of his exceptional erudition, and that it was said that he was a Magician. I pass over Sebastian Franck, a Lutheran, who holds that tale about Sylvester for a fable, with whom Krantz agrees (book 5, metrop., fol. 298). St. Antoninus, proceeding in good faith, the matter not yet weighed, let himself be led astray by Benno and Martin of Poland.

XXXIV. The fifteen Supreme Pontiffs from Sylvester II to Gregory VII, all of whom the heretics accuse of magic, were splendidly defended by Caspar Lechner in the “Thummus Preaching,” and by Laurence Forer in the Lutheran Manual, Part 3, ch. 2 — but especially in the castigation of Thummus’s Apology, from ch. 2 to 7, where he luminously reduces Thummus’s wretched Apology to nothing, and shows Naucerus’s allegation against these 15 Popes to be utterly false. Cardinal Benno, swollen with hatred against the Roman Pontiffs, and likewise the Calvinist Bale, are not suitable witnesses, as Forer particularly shows, loc. cit.

XXXV. Of Formosus I, Baronius writes (A.D. 891) that he stood forth as a most praised Pope both in religion and in integrity of morals and in doctrine — and that on the testimony of Liutprand, Anastasius the Librarian, and Hincmar, Archbishop of Reims. And although in A.D. 892 he crowned Wido, and the following year his Son Lambert, and in the year 896 Arnulf, as Roman Emperors, the aforesaid Authors do not turn this to his fault, nor do they on that account reprehend him, since he did it only from grave and just causes. Boniface VI ought not to be numbered among the Popes, as Baronius too (A.D. 897) excludes him. Sergius III, and his illegitimate Son John XI, likewise John XII, and criminal Pontiffs of this sort we do not excuse; yet we affirm that they could as little prejudice the Dignity and Power of the Apostolic See as the impious Alcimus, Annas, Caiphas, and Jewish High Priests of that sort prejudiced the Chair of Moses; likewise, that many crimes which not a few Kings and Princes have perpetrated — abusing the kingdom and principate granted them — have as little diminished the Office, power, and authority. Among these flagitious Popes Gregory VII is by no means to be



numbered, who was a Pontiff of Apostolic life and of Zeal for GOD and the Church, and who, even amid so many and such great affairs, so excelled in contemplation that he often suffered ecstasy of mind and was not rarely visited with heavenly revelations, as Baronius writes of him at the year of Christ 1073. And although his detestable enemies schemed to brand him with a shameful mark, that rumor immediately vanished, because of the man's Sanctity and his innocence known everywhere, as the same Author relates at the Year of Christ 1074.

XXXVI. Genebrard gives no patronage to the Adversaries. For, 1, of the fifteen Popes who were supposed Magicians he makes no mention at all; nay, openly, at A.D. 1002, he judges fabulous everything that is spread about concerning Sylvester II's magic, his death, his being struck by the devil, adding from Blondus (dec. 2, book 3) that no Writer hesitates to affirm that Sylvester II was most adorned in letters and morals. 2. Some of the said Pontiffs lived only after Leo IX — who, by the force of Genebrard's own words, recalled the ancient integrity of the Pontiffs to the Apostolic See — namely Victor II, Stephen X, Nicholas II, Alexander II, all Popes most praised by Genebrard. Where then are the 15 magicians down to Gregory VII? 3. As to the Popes so greatly defamed through the 150 years, Genebrard himself excepts some, namely Martin II, Agapetus II, John XVII, Sergius IV, Gregory VI. Moreover, 14 Popes among them ruled the Church for the briefest time — namely for only a very few days or months, or scarcely half a year — whose evil life is the less to be exaggerated, the shorter it was. 4. The cause of this evil did not lie with the Apostolic See, but came from elsewhere: *of so great a crime, says Genebrard, the guilty are the Germanic Emperors, who so pressed upon the Church that, Canonical elections being abolished, they gave supreme Pontiffs at their pleasure, and rather often for money and by pacts, and the one elected refused to take up the Pontificate before he was confirmed by them. Some also occupied the See by force or by bribery.* 5. Granted, not conceded, that the aforesaid Popes were not only criminals but even magicians, this nevertheless was not publicly known, nor did they ever publicly exhibit anything of the sort to the Church, or teach it in the See of Peter.

XXXVII. Of the Pontiffs intruded, or entered by Simony, some were driven off; others however were subsequently retained by the consent of the Clergy, and afterwards elected as legitimate Pontiffs with the customary rites, and accepted by the Church; because it seemed preferable that they be tolerated and retained than that the Church be torn asunder by a sorrowful schism, as we have already said above. Whether some of the supreme Pontiffs have at some time lapsed into heresy and stood forth as formal heretics, we shall see in the following Controversy; and below we shall also refute, ex professo, that stupid fable of Pope Joan, to which no wise man gives credence. Only this is now to be added: when Genebrard calls the flagitious Popes *apotactici* and *Apostatics*, he is not speaking of faith, as though they had apostatized from the Catholic Faith, but only of morals, since they departed from the Apostolic life and virtues.

XXXVIII. We reply, 4, *to the argument deduced from the — as the heretics say — ridiculous reasons for the Pontifical Primacy*. 1. As to the History: We deny, with Bellarmine and other Catholic Doctors, that the allegation of the Nicene Council was fictitious, however much the African Bishops could not find the cited canon in their exemplars — because they had codices corrupted by the Arian and Donatist heretics, as Cardinal Baronius shows, A.D. 347 and 419. Also, by the name of the Nicene Council could be understood that of Sardica, which was held as an appendix of the Nicene Council because the same Bishops took part in it; and in the Council of Sardica that canon alleged by the Pontiff is expressly found, as Baronius shows in the same place. There may also be seen the summa of the Councils collected by Bartholomew Carranza, where at the end are added the canons of the Council of Nicaea recently discovered. 2. As to the Council of Florence and Pope Eugene IV: Who would not believe — what daily experience teaches — that the sick can write even with trembling hands? Undeservedly, therefore, is the production of the letters of the Patriarch of Constantinople, already deceased at Florence, called into suspicion of fraud; especially since many Greeks were present to whom the Patriarch's hand was known, and yet they made no reply against the Epistle; certainly the Pontiff had no motive for forging letters, since the Council had already before stood for the Primacy of the Roman Pontiff. The cited letters of the Patriarch Joseph may be seen in the same summa of Carranza, fol. (in my copy) 455. 3. As to the passages of Holy Scripture: the Pontiffs wished to adduce these not in the literal but in the allegorical sense, and not as the foundations of their cause, but as ornaments and posies. In particular, Anacletus in no way insinuated that the name Cephas derives from the Greek κεφαλή, but that in reality the metaphor of the Rock and of the Head signify the same thing, whatever the Glossator may say. To Boniface likewise open injury is done, as though from the first words of Genesis — *in the beginning GOD created heaven and earth, etc.* — he had wished to establish that the Pontiff is the Head of the whole world; for from the text of the whole Epistle it appears that his mind was far different: for when, from the Unity of GOD, he had inferred that there is one single Vicar of GOD, he objected to himself that the Manichaeans posit two GODS, creators of the world, against whom he opposes the cited words of Genesis: that the world was created not in beginnings, but in the beginning, that is, from one beginning. See then how iniquitously the heretics calumniate the Pontiffs themselves when they say that they proved their power by false and absurd arguments. Nothing false, nothing ridiculous do they exhibit: the Sectarians only demonstrate that they themselves are composed of lies and insults.

XXXIX. *The second Error is:* That Innocent XI, the Pope existing for the time being, is not the true and legitimate Pontiff and Successor of Peter. So the same heretics, who strive to establish this chiefly by a twofold instance. The first they take from Formosus, who, held for the true and legitimate Pontiff, died in the year of Christ 896, on the 14th of December, after he had presided over the Church for six years, accepted by her: and yet Stephen VII (called the sixth) condemned this his Predecessor as an illegitimate

Pontiff and reprobated his acts. The other is suggested by the twenty-third schism in the Church, at once the gravest and the longest of all, lasting namely thirty-six years, down to the Council of Constance. For after Gregory XI, the See having been transferred from Avignon back to Rome, died in the City, Urban VI was elected in his place by the Cardinals, two thirds of the votes conspiring upon him; whence his election was promulgated as legitimate, and accepted throughout the Christian World. But not many days afterward certain Cardinals protested against this election and, fleeing into France, elected Clement VII, to whom after 14 years was substituted Peter de Luna of Aragon, who with most obstinate spirit wished to be called Benedict XIII — a dignity of shadow. Meanwhile Innocent VII and Gregory XII succeeded Urban VI, and the Council of Pisa, wishing to remedy this schism, created Alexander V; whence three Pontiffs sat at once: Gregory XII, Benedict XIII, and Alexander V, to whom shortly afterward John XXIII succeeded, Gregory being still alive. Therefore at that time the universal Church neither proposed the election of Urban, nor was she bound to believe it as legitimate, and the succession in the See of Peter was manifestly interrupted. Therefore the Pope existing for the time being, Innocent XI, is not the true and legitimate Pontiff and Successor of Peter. To these two instances Gerhard (book 1, fol. 283) adds this argument: *Of whomever it can reasonably be doubted whether he is in the Church, of him it can also reasonably be doubted whether he is the true and legitimate Pope. But of anyone whatever this can be doubted. Therefore, etc.* The reason of the Major is that the legitimate Pope is the Head of the Church; but he who is not in the Church, how can he be its Head? The reason of the Minor is that of him whose sanctity is not established, it cannot be known that he is in the Church — chapter *cum aliquis*, cause 24, q. 3: *when anyone departs from the truth, from the fear of GOD, from faith, from charity, he departs from the camp of the Church, even if by the voice of the Bishop he is by no means cast out.*

XL. To this error the aforesaid schism gave occasion; for when it had been removed, Pope Martin V, in the Bull recorded in the Council of Constance, made that decree which I mentioned above — namely, that from Heretics wishing to be reconciled to the Roman Church it should first of all be exacted *that they believe that the Pope who for the time being shall be, his name being expressly stated, is canonically elected, and the Successor of Peter, and holds supreme power in the Church of God.* Palao (Tract 4, Disp. 1, punct. 5, § 2, num. 11) observes that it is one thing to say: *it is not of faith that Innocent XI is the true Pontiff*, and another: *the same is not the true Pontiff*; for this latter proposition is temerarious, scandalous, and plainly heretical; the former he will not censure more gravely, on account of several celebrated Theologians who have defended it. We, although we hold that it is of faith that Innocent XI is the true Pontiff and Successor of Peter, nevertheless do not here contend against those Theologians by accusing them of heresy; because the revelation of this truth either has not been sufficiently proposed to them, or they do not pertinaciously resist it, being ready to believe it whenever they shall have understood it to be sufficiently proposed by the Church. And so we reject only the error of the Sectarians, who not only in general hold all the Roman Pontiffs for

illegitimate, but also deny that this Pope existing for the time being, Innocent XI, is the true legitimate Pontiff and Successor of Peter, however much he has been Canonically elected and accepted by the Church. The instances brought forward in no way serve the Adversaries.

XLI. Response 1, *to the first instance, concerning Formosus and Stephen*. Stephen erred indeed, but in a question of fact, not of law, and by bad example, not by false doctrine. So Bellarmine (Tom. 1, Book 4, On the Pontiff, ch. 12) and commonly the other Catholic Doctors. The History, from Cardinal Baronius (Tom. 10, Ecclesiastical Annals, A.D. 897), stands thus: Stephen VII, a true Pope, out of grave hatred exhumed the corpse of his Predecessor Formosus, likewise a legitimate Pontiff, and, having clothed it in the Pontifical vestments, placed it on the Seat of the Roman Papacy, addressing that Pope thus: *When you were Bishop of Porto, why did you, in a spirit of ambition, occupy the Roman Universal See?* — with which words he presently ordered the same, stripped of the sacred vestments and with the three fingers with which he had been accustomed to bless cut off, to be hurled into the Tiber; and all whom he had ordained he cast down from their proper rank and ordained anew. Then, having gathered a Synod, he had this deed of his approved there; which approbation John IX afterward rescinded, committed to the flames, and utterly abolished. In this abominable affair there occurred no error in faith, says Baronius rightly (loc. cit.), but violent Tyranny in deed; because Stephen did not wish to define that Formosus had not been a legitimate Pontiff after he had been accepted by the Church, but, seething with anger, wished by this means to dishonor and defame the man whom he had pursued with grave hatred, and to have approvers of his crime as though of a just deed. For the rest, Liutprand writes (Book 1, ch. 8, in the same Baronius) that Formosus, when he had been found by Fishermen and carried back into the Church of St. Peter, was venerably saluted by the Sacred Images as he lay in his coffin; from which it may easily be conjectured of how great Authority, of how great religion and Sanctity a Pontiff Formosus was.

XLII. Response 2, *to the second instance, concerning the schism*. When at once and manifestly the validity of an election is established through common acceptance, however much some may afterwards protest, not even all the Electors together can revoke it, once made and accepted. And so it happened with the Election of Urban VI, whose juridical election neither the number of those Cardinals — namely twelve, Frenchmen, short of the lawful number — nor their too-tardy protest could invalidate; who accordingly was without any doubt the true Pontiff (whom for that reason St. Catherine of Siena greatly championed), and all his Successors were always held as altogether legitimate by the greater and sounder part of the Church down to the times of Gregory XII, Benedict XIII, and John XXIII, all three of whom called themselves Popes, and each had his own adherents; whence at that time, even among prudent men and men of sound judgment, some doubt arose — chiefly between Gregory XII and John XXIII (for no probable right pleaded for Benedict) — as to which of them was to be preferred

to the other; for both had been elected, at different turns, by the greater part of the Cardinals for the sake of removing the schism; whence each seemed able to claim a right to the Papacy.

XLIII. In this case and most sorrowful state of the Church it must be judged that it was not of faith which of them was the true and legitimate Pope. So, after others, expressly Arriaga (Tom. 5, Disp. 7, sect. 8, num. 54). For in order that the election of a Pope be of faith, and be held as such, it does not suffice that it be proposed and accepted by the Church in any way whatsoever; but it must be proposed and accepted without probable contradiction — that is, notable contradiction of prudent men, and resting on apparent foundations; otherwise it is lawful for anyone to suspend assent until it be better established who has the true right to the Papacy. But if only a few oppose the election, who may be mere malcontents, they do not break the election, nor take away its certitude. Now in the time of Gregory XII and John XXIII such probable contradiction existed, since on either side stood many prudent men resting on apparent foundations, and Christendom was torn asunder, as the Historians testify. Therefore it was then of faith for neither, nor was it held as such. It is confirmed from the common opinion of all the Doctors: a doubtful Pope, in the face of the Church, is really not a true Pope, inasmuch as the Church is not bound to obey him, but may by right proceed to a new election. Since therefore the aforesaid Pontiffs were doubtful Pontiffs, and the Church for that reason proceeded to a new election in the Council of Constance, as is evident to all, it could not be of faith that either Gregory or John was then the true Pope. From this, however, it is not inferred that it was then just as if all had adhered to a non-true Pope. For although many adhered to him who really was not Pope, nevertheless the whole Church was not deceived, but only a part; those also who are invincibly deceived, the Schism being afterwards removed and they being united to the true Pontiff, seek anew and will receive the confirmation of those graces which they had received from the apparent one; and thus the danger of irreparable harm and of false dogmas by this very fact ceases. Hence Martin V, at length legitimately and without contradiction elected in the Council of Constance, the schism being entirely laid to rest, of the things done under the Schism revalidated some and invalidated others, as seemed expedient for the good of the Church and for removing from her every ground of doubting.

XLIV. Response 3: Gerhard's argument deserves to be retorted rather than answered. For, 1, it is false that he is not in the Church, of whom it can reasonably be doubted whether he is in the Church; because it is the defect of Faith alone, not the doubting of others, that excludes from the Church. 2. It is false that of anyone whatever it can thus reasonably be doubted whether he is in the Church; for this is mere Calumny of the heretics. 3. It is false that he is not the legitimate Pope, of whom it can reasonably be doubted whether he is in the Church; because the mere doubt of others does not strip the Pope from the possession of his legitimate Pontificate. 4. It is false that any Pope has in fact been a heretic; for this is not proved, but merely posited by the Sectarians. 5. It is false that the

cited chapter *cum aliquis* says that a man is not in the Church, or that it cannot be known with (moral) certainty that he is in the Church, of whose interior sanctity there is no assurance; for moral certitude can be had about someone that he has faith, though not that he has grace. 6. It is false that a heretical Pope (granting, not conceding, this case) cannot be the Head of the Church; because, for someone to be precisely the Head (metaphorically taken) of the Church, Faith is not necessarily required, as is evident in Christ, who was the Head of the Church and yet did not have faith. Behold the single argument of the heretical Master, teeming with so many falsities!

XLV. That we may at last put an end to this truly difficult matter of the successors of St. Peter, we conclude with this argument. Whoever, for the sake of one visible flock to be perpetually preserved and governed, wisely institutes one visible Shepherd, also institutes a perpetual Shepherd. But Christ (Matth. 16; Luke 12; John 21), for the sake of His visible Sheepfold to be preserved and governed until the consummation of the age, instituted one ordinary visible Shepherd. Therefore in the same words Christ instituted a perpetual Shepherd. But he is not perpetual in the person of Peter. Therefore in his Successors. Therefore, since the heterodox have not been able, for all the years past, to point to any other than the Roman Pontiff at any given time, they are forced to confess that Christ, just as He has constituted for His universal Church this Innocent XI for the present time, so out of all the rest has also constituted, for his own time, whoever held the office at any other time as supreme Pontiff. With this argument, I say, we conclude, and we confirm everything that has been said thus far — which would stand unshaken until the Adversaries overturn this foundation, which will never at any time come to pass. A similar mode of concluding is used by St. Justin Martyr, whom the DD. à Wallenburch allege and follow, Tom. 2, fol. 7.